



JAMAICA CONSTABULARY FORCE

Policy and Standard Operating Procedure for the disposal of vehicles by Police Formation

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1.0 Introduction

Having regard to the significant accumulation of motor vehicles on police station compounds across the island which gives rise to health, safety and other concerns the Jamaica Constabulary Force have instituted this policy. It is anticipated that hereafter the requisite steps will be taken to effect removal of vehicles from station compound that qualify.

2.0 Purpose

The purpose of this policy is to standardize guidelines to members of the JCF in relation to the procedures for the control, safeguard and release of vehicles that come into the custody of the police.

3.0 Scope

This policy applies to all sworn members of the JCF it covers the reasons for impoundment, seizure, inventorying and towing.

4.0 Abbreviations and acronyms

CCU	Corporate Communications Unit
CIB	Criminal Investigation Bureau
DPP	Director of Public Prosecutions
JCF	Jamaica Constabulary Force
SCU	Scene of Crime Unit

5.0 Definition

5.1 Impoundments

This is defined as the towing of a vehicle under circumstances where the vehicle may be released to the owner subsequent to payment of the towing bill.

5.2 Seizure

This is defined as the towing away of a vehicle in circumstances where the vehicle may not be released to the owner until the investigation into the circumstances leading to the seizure have been concluded or the matter adjudicated on by the courts.

6.0 Responsibilities

6.1 The Divisional Officer shall have the following responsibilities:

- i. oversee the management of the various police facilities in the division.
- ii. Ensure that all members under his command are abreast of this policy and that the relevant records are managed.
- iii. Ensure station inspections and documentations are conducted and inspection sent to Area officer.

7.0 Policy Statement

It is the policy of the JCF to impound or seize motor vehicles in accordance only with the laws of Jamaica and in the interest of the citizens of Jamaica and the owners of the vehicles involved. Seizure should only be done to ensure road safety, foster

compliance with the law, protect private property and secure vehicles of evidentiary value.

8.0 Standard Operating Procedure

8.1 Impoundment

Vehicles shall be impounded for the following reasons:

- 8.1.1** The arrest of the operator when no other person is present who can lawfully assume custody of the vehicle;
- 8.1.2** The vehicle is parked unattended on the roadway and presents a hazard;
- 8.1.3** The vehicle is disabled as a result of an accident or mechanical breakdown presents a hazard to road users;
- 8.1.4** The vehicle is parked or stopped in the vicinity of a fire or emergency scene and constitutes a hazard
- 8.1.5** interferes with police operations;
- 8.1.6** The vehicle has been abandoned on public property or upon private property without the consent of the property owner;
- 8.1.7** Recovered stolen vehicles;
- 8.1.8** for safekeeping;

8.2 Seizure

Vehicles shall be seized for the following reasons:

- 8.2.1** The vehicle constitutes evidence in and of itself;
- 8.2.2** The vehicle was used to transport stolen property;
- 8.2.3** The vehicle was used to transport drugs;
- 8.2.4** The vehicle is an instrument of a crime.

8.3 Vehicle Inventory

Vehicles that are towed at the direction of a member of the Jamaica Constabulary Force shall undergo an inventory of its contents. The inventory is conducted for the purpose of protecting the personal property of persons whose vehicles are towed under circumstances where they cannot arrange for

the safe keeping of items contained in the vehicle, and to assist in defending against allegations of theft that might be directed at the Force.

8.3.1 Circumstances under which a vehicle shall be inventoried

- i. all seizure;
- ii. all impoundments, except in cases where the vehicle's owner or operator is present at the time the vehicle is towed and is capable of arranging for the safekeeping of personal property contained in the vehicle;
- iii. vehicles shall not be inventoried in cases of towing from the scene of a traffic accident unless the owner, authorized operator or someone on their behalf is present at the scene to arrange for the safekeeping of personal property when the vehicle is towed from the accident scene.

8.3.2 Location and Scope of Inventory

- i. if the vehicle is to be towed to a facility other than a police facility, it shall be inventoried prior to removal from the scene;
- ii. the scope of the inventory shall include the interior of the vehicle and areas which can be readily entered without the use of force, e.g. the glove compartment and trunk;
- iii. all inventories shall be conducted in a manner to avoid any damage to the vehicle or its contents.

8.3.3 Storage of Items Held as a Result of an Inventory

- i. items discovered during the course of an inventory that are contraband or evidence shall be held as an exhibit. Procedures outlined in Force Order relating to the control of evidence shall be followed;
- ii. items discovered during the course of an inventory when the driver was arrested shall be considered to be prisoner's property and shall be held as such at the location of confinement;
- iii. items discovered during the course of an inventory that are to be maintained by the J.C.F. for safekeeping shall be secured at the collector's Station Exhibit Store, pending release to the owner.

8.3.4 Towing and Inventory Record

Whenever a vehicle is towed and an inventory is conducted, the following information shall be recorded in the Station Diary and/or property/exhibit register:

- i. date and time of tow and inventory;
- ii. police person assigned to case;
- iii. location of tow;
- iv. reason for tow;
- v. storage location;
- vi. what notification has been made to owner;
- vii. vehicle year, make, model, style, colour and identification;
- viii. license plate number;
- ix. name of towing company.

8.4 Notification to Owner

- 8.4.1** Whenever a vehicle comes into the custody of the police, every effort shall be made to notify the owner of the vehicle in a prompt manner.
- 8.4.2** In the event the owner is arrested and his vehicle is towed, the owner shall be notified at the time of arrest where his vehicle will be stored;
- 8.4.3** In the event a vehicle is towed from the scene of an accident, the owner shall be notified at the scene where his vehicle will be taken. The owner shall be responsible to pay the cost of towing;
- 8.4.4** In the event a stolen vehicle is recovered, the owner shall be notified forthwith. Where no arrest is made or when none is imminent, the vehicle should be released to the owner after the scene of crime unit has processed it for evidence;
- 8.4.5** In cases where vehicles are impounded and the owner is not initially known, the police person assigned the case shall contact the Motor Vehicle Department, Ministry of Works and determine from their records who the owner is and notify that person the reason for impoundment and disposition of the vehicle;
- 8.4.6** In case when a vehicle is impounded and the owner cannot be determined, the police person assigned the case shall notify the Corporate Communication Unit (CCU) and request that newspaper advertisement be made giving information on the vehicle and its custody. If after three (3) months the owner is not determined, the Divisional Officer concerned shall notify the Assistant Commissioner for Services so that the procedure for dealing with abandoned vehicles may be pursued.

8.5 Hit and Run Vehicles

Vehicles involved in serious injury or fatal hit and run accidents may be impounded for evidence. In such cases, the C.I.B. Scene of Crime Unit (SCU) shall be notified to process the vehicle.

8.6 Stolen Vehicles

Vehicles that have been stolen and recovered as a result of Force investigation shall be impounded. The SCU shall be notified to process the vehicle. The police person who is assigned to the initial report of the stolen vehicle shall also be notified of the recovery

8.7 Vehicle Release

A vehicle is in Police custody as a result of a seizure, its release shall be effected only in the following circumstances:

8.7.1 on the order of the Court;

8.7.2 at the direction of the Director of Public Prosecutions (DPP) office;

8.7.3 by the investigator when after investigation it is determined not to have any connection with the crime.

9.0 Legislative Authority/Guiding Principles

9.1 Road Traffic Act

10.0 Records and Related Forms

10.1 Station Diary

10.2 Property/Exhibit Register

11.0 Roles and Functions